

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHASEN PAUL DAVID GONZALES,

Petitioner

VS.

CHIPONGOLO MULENGA,

Respondent

) Case Number: FPT-24-378337

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Chasen Paul David Gonzales (Father) and Chipongolo Mulenga (Mother) have one minor child together, Ethan (DOB 7/22/2023, age 3). Father lives in San Francisco; Mother lives in Walnut Creek. On 12/4/2024, a stipulated 4-year Domestic Violence Restraining Order was issued against Father, protecting Mother.
- 2) On 10/2/2025, the Court found Father had overcome the Family Code section 3044 presumption against joint custody but found it was in Ethan's best interest for Mother to retain sole legal and physical custody. The Court expressed concern about the parties' poor communication and ordered them to continue working on their coparenting skills. The Court ordered a parenting time schedule for Father from Thursday to Friday during Week A and Thursday to Sunday during Week B.
- 3) On 1/6/2026, Father filed a request for joint legal custody, a two-phase transition into a 2-2-5-5 parenting time schedule, and a holiday schedule. At a 4/21/2026 hearing, the Court maintained the custody and parenting time order, set a holiday schedule, and granted Father's request to

1 travel with Ethan out of state from 7/1/2026 to 7/7/2026. The Court set a review hearing for
2 7/21/2026, which was continued to 9/1/2026 after Mother retained new counsel and requested a
3 brief continuance.

- 4 4) Mother filed declarations on 7/21/2026 and 8/21/2026. Father filed an update declaration on
5 7/29/2026. The Court has reviewed and considered the parties' declarations, including both
6 parties' statements regarding the injuries Ethan sustained while in Father's care, Mother's
7 statements regarding Ethan's enrollment in the same daycare in Walnut Creek since April 2025
8 and in a speech program through the Walnut Creek School District, Father's statement that Ethan
9 has been doing well in his care and his renewed request for a 2-2-5-5 schedule, and both parties'
10 concerns regarding coparenting and communication, including Father's concerns regarding notice
11 of Mother's recent international travel.

12 **B. Findings and Orders**

- 13 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
14 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
15 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
16 child is the United States.
- 17 2) The Court finds it is in Ethan's best interest for the parties to share joint legal and physical
18 custody. Commencing the week of 9/9/2026, Father shall have parenting time as follows:
- 19 a. Week A: Wednesday afternoon Walnut Creek daycare pickup (or 6pm pickup at Walnut
20 Creek Library if no daycare) until Friday at 6pm exchange at Wow Kids on Polk Street in
21 San Francisco;
- 22 b. Week B: Wednesday afternoon Walnut Creek daycare pickup (or 6pm pickup at Walnut
23 Creek Library if no daycare) until Sunday at 6pm exchange at Wow Kids on Polk Street
24 in San Francisco.
- 25 3) The above schedule permits Mother to maintain Ethan's enrollment in his daycare/preschool in
26 Walnut Creek on Mondays, Tuesdays, and Wednesdays. In addition, Father may enroll Ethan in a
27 daycare or preschool in San Francisco on his custodial days—Thursdays and Fridays. Father shall
28 provide all information regarding the daycare/preschool he has proposed to Mother in advance of
29 enrollment, and Mother shall cooperate with the signing of any documents necessary for

1 enrollment. The parties shall ensure that both parties are listed as authorized to pick up Ethan and
2 as emergency contacts for all daycares/preschools in which Ethan is enrolled, regardless of
3 location (e.g., San Francisco, Walnut Creek). If and when Ethan is enrolled in a
4 daycare/preschool in San Francisco, the exchange location for the Week A Friday pickup shall be
5 modified so that Mother picks Ethan up from the San Francisco daycare/preschool.

6 4) All prior orders not in conflict with these orders shall remain in full force and effect.

7 5) Father's attorney shall prepare the Findings and Order After Hearing and an amended DVRO.

8 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
9 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
10 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
11 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
12 proposed order after hearing directly to the court. Failure to submit the order after hearing within
13 10 days may allow the other party to prepare a proposed order and submit it to the court in
14 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JASMINE SHAVON WILLIAMS,

Petitioner

VS.

ADRIEN EUGENE GODBOLD,

Respondent

) Case Number: FPT-25-378795

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REVIEW HEARING: COMPLIANCE WITH ORDERS ISSUED AT 6/02/26 HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

- 1) The parties in this matter are Petitioner Jasmine Williams (Mother) and Respondent Adrien Godbold (Father). The parties have one minor child, Brince (DOB: 4/16/2021, age 5).
- 2) At the prior 6/2/2026 hearing, both parties appeared. The Court granted Father's request to transfer venue of this case to Alameda County.
- 3) On 8/12/2026, the Court transmitted to the Alameda County Superior Court copies of all documents filed in this case.
- 4) The Court finds that the transfer of this case to Alameda County has been effectuated. The Court will make no additional orders in this matter.
- 5) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

HUA JIANG,

Petitioner

VS.

CHANNEY HUNG VI CHAU,

Respondent

) Case Number: FDI-15-784943

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: CHANGE OF SPOUSAL OR PARTNER SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Hua Jiang (Wife) and Respondent Channey Hung Vi Chau (Husband). The parties have three adult children. Husband is represented by attorney Maryann Dresner. Wife is self-represented.
- 2) On 5/20/2025, the parties appeared for a Judicial Settlement Conference (JSC) before Judge Luna. Wife appeared in pro per. Husband appeared with his attorney Maryann Dresner. The parties reached a full agreement. The parties agreed the property located at 745 Brunswick St. San Francisco, CA would remain in joint tenancy until both parties die, at which point it would pass to the parties' three adult children. The parties agreed they would occupy the Brunswick St. property in different sections of the home. Husband agreed to pay Wife \$2,500 per month for spousal support commencing 8/1/2025. The parties also agreed to share equally the mortgage, property taxes, property insurance, and utilities for the Brunswick St. property. The minutes for the 5/25/2025 JSC indicate the Court found the parties to have freely, knowingly, and voluntarily

1 entered into the stipulated agreement and ordered that the parties' agreement become an order of
2 the Court.

3 3) A Judgment memorializing the parties' agreements reached at the 5/20/2025 Judicial Settlement
4 Conference was filed on 4/10/2026.

5 4) On 2/17/2026 (per the Findings and Order After Hearing filed 3/9/2026), the Court adjudicated
6 Husband's Request for Order (filed 8/13/2025) wherein Husband requested that the Court set
7 aside the parties' agreement which requires the parties to share the carrying costs for the
8 Brunswick St. property equally and additionally requires Husband to pay Wife \$2,500 per month
9 for spousal support. The Court found that Husband did not meet his burden to show the Judgment
10 should be set aside and denied Husband's request. The Court stated that Husband may deduct
11 Wife's portion of the carrying costs from his \$2,500 per month spousal support payment.

12 5) Now on for hearing is Husband's Request for Order filed 5/8/2026 wherein Husband requests a
13 modification of the order requiring him to pay \$2,500 per month in spousal support to Wife.
14 Husband states Wife has not paid "any" of the carrying costs for the residence, which the parties
15 continue to both occupy in separate parts of the residence. Husband states the carrying costs for
16 the residence exceed the sum of \$5,000 per month (as the Court notes below, this is not a correct
17 statement). Husband states he can only afford to pay Wife \$1,000 per month in spousal support.
18 Husband does not state whether he has been deducting Wife's portion of the carrying costs and
19 utilities from Wife's spousal support payment, as the Court stated he could do at the prior
20 2/17/2026 hearing.

21 6) On 5/8/2026, Husband filed an Income and Expense Declaration. Husband states he is 59 years
22 old and works as a parcel delivery driver for the United Parcel Service. Husband states he pays
23 the following amounts in carrying costs each month: \$2,750 (mortgage), \$792 (real property
24 taxes), and \$1,500 (homeowner's insurance). The Court notes this \$1,500 figure for homeowner's
25 insurance is incorrect, and this error also appeared in the Income and Expense Declaration that
26 Husband filed prior to the 2/17/2026 hearing. At the prior 2/17/2026 hearing, both parties testified
27 that the payment for homeowner's insurance totals \$1,500 per year, which averages out to \$125
28 per month. Therefore, the carrying costs for the home actually total \$2,750 (mortgage) + \$792
29

(real property taxes) + \$125 (homeowner's insurance) = \$3,667 per month, with each party's share being \$1,833.50 per month.

- 7) On 5/8/2026, Husband filed a Request to Reschedule the hearing on Husband's Request for Order, which was originally scheduled for 7/30/2026. On 6/26/2026, the Court granted Husband's request and rescheduled the hearing to 9/1/2026.
- 8) Per the Proof of Service filed 7/2/2026, Husband's Request for Order, Income and Expense Declaration, Order on Request to Reschedule Hearing, blank Responsive Declaration, blank Income and Expense Declaration, and Tentative Ruling Instructions were mailed to Wife at the Brunswick St. address. The Court notes that at the prior 2/17/2026 hearing, Wife appeared and confirmed she was still living at the Brunswick St. property.
- 9) Wife has filed no pleadings in response to Husband's 5/8/2026 Request for Order.

B. Findings and Order

- 1) A modification of a spousal support order may be granted only if the party seeking the modification shows a material change of circumstances since the most recent order. Marriage of West (2007) 152 Cal.App4th 240, 246; Marriage of Tydlaska (2003) 114 Cal.App.4th 572, 575. A material change of circumstances is required even if the prior spousal support order was established by the parties' agreement. Marriage of McCann (1996) 41 Cal.App.4th 978, 982. Absent a change of circumstances, a motion for modification would be an "impermissible collateral attack on a prior final order." Marriage of Khera & Sameer (2012) 206 Cal.App.4th 1467, 1479.
- 2) Husband has not cited a material change in circumstance warranting a modification of the spousal support order contained within the Judgment. Husband's request to modify the spousal support order is denied.
- 3) Moreover, the Court finds that Husband can afford to pay Wife \$2,500 per month in spousal support plus his one-half share of the carrying costs for the residence. The paystubs attached to Husband's Income and Expense Declaration show that, as of 4/4/2026, Husband had received \$41,385.70 in gross year-to-date pay. The paystubs reflect \$166.14 in year-to-date parking deductions, \$9,996.62 in year-to-date tax deductions, and \$2,042.06 in other deductions, resulting in year-to-date net pay of \$29,180.88, which averages out to net monthly income of \$9,442. As

1 for Husband's monthly expenses, they total \$1,833.50 (Husband's one-half share of the carrying
2 costs) + \$2,500 (spousal support) + \$500 (maintenance) + \$872 (eating out) + \$400 (cell phone) +
3 \$50 (laundry and cleaning) + \$42 (clothes) + \$400 (entertainment, gifts, vacation) + \$520 (auto
4 expenses) + \$599 (credit card payments) + \$999 (car payment) = \$8,715.50. Husband's average
5 net monthly income of approximately \$9,442 therefore exceeds his stated monthly expenses,
6 including his \$2,500 monthly spousal support obligation and his one-half share of the carrying
7 costs, by approximately \$726.50 per month.

8 4) Husband's attorney shall prepare the Findings and Order After Hearing.

9 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
10 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
11 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
12 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
13 proposed order after hearing directly to the court. Failure to submit the order after hearing within
14 10 days may allow the other party to prepare a proposed order and submit it to the court in
15 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TALIA FELLAH MEULEAU,	)	Case Number: FDI-21-795693
Petitioner	)	Hearing Date: September 1, 2026
VS.	)	Hearing Time: 9:00 AM
NICOLAS MEULEAU,	)	Department: 404
Respondent	)	Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME), SERVE BY EMAIL

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Talia Fellah (Mother) and Respondent Nicolas Meuleau (Father) have one minor child together, A.M. (DOB 7/27/2014, age 12), and an older child who reached the age of majority in April 2026.
- 2) Father moved to France in 2024, and the parties entered into a custody and parenting time agreement in June 2024. (See Findings and Order After Hearing filed 10/3/2024.)
- 3) On for hearing is Mother’s 4/2/2026 request for modification of the custody and parenting time order. She requests: (1) equal time to both parties during summer break (Mother states A.M. has repeatedly expressed her wish for this); (2) forfeiture of Father’s parenting time unless he provides parenting time and travel arrangements to her in writing at least 45 days before his parenting time (Mother states Father has failed to exercise his parenting time for 10 days out of 3 weeks in February 2025 as well as in October 2025 and February 2026, requiring her to arrange for childcare); (3) reimbursement from Father of childcare costs that are the direct result of his

1 failure to exercise his confirmed parenting time; and (4) permission to serve Father by email
2 because she does not have a confirmed physical address for him and the parties have been using
3 email to communicate regarding all custody and parenting time issues.

4 4) Father has filed a response in which she opposes Mother's request regarding summer breaks and
5 notice and potential forfeiture of his October and February parenting time. He states he has not
6 been able to exercise his parenting time in San Francisco due to work, financial, and health
7 issues, but he has exercised all summer parenting time and values the time he is able to spend
8 with the child(ren). He states there are times that weeks go by without contact from the children
9 and that he does not hear from them on his birthday or Father's Day. He asks that Mother better
10 facilitate his communication with A.M. Finally, Father agrees that the parties should be permitted
11 to serve each other via email; he asks that email service be considered personal service so long as
12 the party being served is served via email on or before 4pm on the last day for personal service
13 (local time for the recipient).

14 5) The parties attended mediation and were unable to reach an agreement. At mediation, Mother
15 asked for (1) 5 weeks for each party during the summer; (2) Father to pay the cost of childcare in
16 October and February if he does not exercise his scheduled 3-week parenting time during those
17 months; (3) Father to provide 45 days' notice if he intends to exercise parenting time in October
18 and February, with flight and lodging information; (4) visits to be canceled if Father fails to
19 provide 45 days' notice. At mediation, Father asked for (1) 7 weeks of summer for Father and 3
20 weeks for Mother; (2) Father to provide 30 days' notice about his October and February visits;
21 and (3) childcare costs to be equally shared by the parties if he is unable to exercise his October
22 and February visits.

23 **B. Findings and Orders**

24 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
25 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
26 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
27 child is the United States.
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29

- 2) The Court finds it is in A.M.'s best interest to maintain the current order regarding summer breaks. The Court denies Mother's request for equal parenting time during the summer, without prejudice to revisiting this issue in future years.
- 3) Beginning in 2027, Father shall provide written notice to Mother of his intended February parenting time by emailing her with his dates of travel and flight and lodging information on or before January 1. Beginning in 2027, Father shall provide written notice to Mother of his intended October parenting time by emailing her with his dates of travel and flight and lodging information on or before September 1. Once this email is sent and received, Father's parenting time is confirmed. (Until 2027, i.e., for any October 2026 parenting time, the current order remains in full force and effect.)
- 4) If Father does not provide written notice to Mother by email of his February or October parenting time by the dates set forth above (in #3), his parenting time is deemed forfeited for those months. If Mother incurs any childcare costs due to Father's forfeited parenting time during those months, she shall be solely responsible for any such costs incurred.
- 5) If Father cancels a confirmed visit in either February or October (i.e., after he has already provided written notice to Mother by email of his February or October parenting time), and Mother incurs any childcare costs due to Father's cancelation of a confirmed visit, Father shall be solely responsible for any such costs incurred.
- 6) Mother shall ensure that Father and A.M. are able to contact each other via email or phone or video call through a device such as a smart phone or iPad.
- 7) The parties have agreed to serve each other by email. Going forward, the parties shall serve each other via email, and email service will constitute personal service so long as the person being served is served via email on or before 4pm on the last day for personal service (4pm local time for the recipient).
- 8) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AI LIEN LI,
Petitioner

VS.

ALAN KO,
Respondent

) Case Number: FDI-22-796435
)
) Hearing Date: September 1, 2026
)
) Hearing Time: 9:00 AM
)
) Department: 404
)
) Presiding: AI MORI
)
)

NOTICE OF MOTION AND MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING

As there is no evidence in the record that Ms. Wong served her Motion to be Relieved as Counsel on either Father or Mother's attorney, as required by California Rules of Court, rule 3.1362(d), the parties and their attorneys are ordered to appear in person or via Zoom video at 9am on 9/1/2026 in Department 404. Ms. Wong shall use her best efforts to contact Father to inform him that he needs to appear at the 9/1/2026 hearing.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Ai Li (Mother) and Respondent Alan Ko (Father) have one minor child, Vincent (DOB: 6/6/2012, age 14). Mother is represented by attorney Sarah Weddle.
- 2) Although this matter has been pending since 2022, no Judgment has been entered in this matter to date.
- 3) On 5/9/2023, following a 4-afternoon trial, Judge Flores granted a 3-year Domestic Violence Restraining Order for the protection of Mother.

- 1 4) The restraining order was originally set to expire on 1/17/2026. On 1/16/2026, Mother filed a
2 Request to Renew Restraining Order.
- 3 5) The hearing on Mother's Request to Renew Restraining Order has been continued multiple times.
- 4 6) On 7/31/2026, Father's attorney Catherine Wong filed a Motion to be Relieved as Counsel. Ms.
5 Wong states there has been a breakdown in the attorney-client relationship such that effective
6 representation is not possible. Attached to Ms. Wong's motion to be relieved as counsel is a
7 Declaration in Support of Attorney's Motion to be Relieved as Counsel (MC-052). Ms. Wong did
8 not complete section 3 of that form, which requires her, pursuant to California Rules of Court,
9 rule 3.1362(d), to state whether her client has been served with copies of the motion papers and
10 whether she has confirmed that the address at which service was performed is current.
- 11 7) The Court also notes there is no Proof of Service on file showing service of Ms. Wong's motion
12 to be relieved as counsel on Ms. Weddle, which is also required by California Rules of Court, rule
13 3.1362(d).
- 14 8) Ms. Wong's motion to be relieved as counsel was originally scheduled to be heard on
15 10/20/2026. At the 8/12/2026 hearing, Father was not present, and the Court advanced the
16 hearing on Ms. Wong's motion to 9/1/2026.

17 **B. Findings and Order**

- 18 1) **As there is no evidence in the record that Ms. Wong served her Motion to be Relieved as**
19 **Counsel on either Father or Mother's attorney, as required by California Rules of Court,**
20 **rule 3.1362(d), the parties and their attorneys are ordered to appear. Ms. Wong shall use**
21 **her best efforts to contact Father to inform him that he needs to appear at the 9/1/2026**
22 **hearing.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAVID BENJAMIN CARLSON,

Petitioner

VS.

EKAMA ONOFIOK CARLSON,

Respondent

) Case Number: FDI-24-799426

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

At the 9/1/2026 hearing, the Court intends to adopt the following findings and orders absent good cause shown. The parties are ordered to appear in person or via Zoom video at 9am on 9/1/2026 in Department 404 to discuss Father's request that the Court appoint a third-party accountant to manage the yearly support true-up. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner David Carlson (Father) and Respondent Ekama Carlson (Mother). The parties married on 3/31/2012. While the parties disagree regarding their exact date of separation, they agree they separated in early 2024, for a marriage of at least 11 years. The parties have two minor children, Basse (DOB: 12/26/2014) and Esien (DOB: 4/23/2021). Both parties are currently self-represented.
- 2) At the prior 10/9/2025 hearing (per the Findings and Order After Hearing filed 10/17/2025), the Court adopted its Tentative Ruling (without objections) which requires Mother to pay Father

1 effective 11/1/2025 \$1,954 per month for guideline child support and \$1,894 per month for
2 temporary guideline espousal support, for a total of \$3,848 per month. The support calculation
3 includes an imputation of \$100,000 in annual income to Father and Mother's earning \$10,000 per
4 month in salary, \$15,000 per month in self-employment income, and \$1,218 per month in other
5 taxable income. The Court noted that the Work Search Order against Father remained in effect. A
6 review hearing was set for 3/3/2026 (which was later continued to 3/17/2026).

7 3) On 2/23/2026, Father filed a Declaration Regarding Work Search and Employment Status. Father
8 states, "Respondent has not paid me spousal support since she filed her TRO in June 2025 and
9 owes me over \$40,000 in support arrears... The current situation is not sustainable for me... The
10 Court is already imputing me income of \$100,000 per year, which seriously reduces the support
11 order and is unsustainable for me. Given my employment and income history, imputing any
12 higher level of income when I have been actively seeking work would be detrimental to our
13 children as I can already not afford to pay for basic living expenses."

14 4) On 2/24/2026, Mother filed a Declaration. Mother states her actual monthly income in 2025
15 averaged \$15,380, which is approximately \$10,000 less per month than what the current support
16 order is based on. Mother asks the Court to base the current support obligation upon Mother's
17 earning \$15,000 (i.e., \$11,916 per month in W2 income and \$3,084 per month in self-
18 employment income). Mother states that any income earned above \$15,000 can be captured in an
19 annual true-up. Mother asks the Court to impute \$155,000 in income to Father in line with the
20 vocational evaluation report prepared by Soma McCandless dated 4/17/2025. Mother attached
21 Ms. McCandless' report to her declaration. It states, "Based on his education, experience, and the
22 figures above, Mr. Carlson could expect to earn a base salary in the range of \$100,000 to
23 \$155,000 per year in the above-mentioned roles... After returning to full-time work and having
24 recent work experience, if successful, Mr. Carlson can increase his future earnings." Mother
25 states Father is not actually spending 10 hours per week seeking work or applying to 5 jobs per
26 week. Mother states she has been unable to keep up with Court-ordered spousal support payments
27 due to financial hardship caused by Father's ongoing litigation.

28 5) On 3/11/2026, Father filed a Response. Father disputes Mother's claims that he is not diligently
29 seeking work, that he abused Mother, and that he should be imputed with additional income.

1 Father states that Mother's dip in income in 2025 was temporary and a one-time event and that
2 Mother states herself that collections improved in September 2025. Father also states that if
3 Mother did overpay support in 2025, the parties have a true up in place to handle reimbursement
4 to the other party. Father also accuses Mother of not earning to her capacity. Father states that
5 Mother's current reported income of ~\$15,000 per month is 2-3 times less than what is currently
6 available in the job market and 3 times less than what Mother earned at her previous job at
7 Kaiser. Father asks the Court to maintain the current support orders, order Mother to seek work if
8 she is unable to increase her earning capacity to her previous income at Kaiser, and order
9 discovery of her business' books before the 2025 true up.

10 6) Following the 3/17/2026 review hearing, the Court issued a Findings and Order After Hearing on
11 4/17/2026 which reserves jurisdiction to modify child and temporary spousal support retroactive
12 to the date Father begins his new job. The Court also denied Mother's request to impute
13 additional income to Father, and denied Mother's request to modify child and temporary spousal
14 support retroactive to a date preceding the date Father begins his new job. The Court further
15 reserved jurisdiction over what may be owed for the 2024 support true-up, ordered the parties to
16 meet and confer on this issue, and ordered the parties to file a new Request for Order if they were
17 unable to reach an agreement. The Court set a future hearing date of 6/30/2026 (which was later
18 continued to 9/1/2026) to determine (a) whether to modify child and temporary spousal support
19 retroactive to the date Father began his new job to take into account (i) Father's new employment
20 earnings and (ii) possibly lowered base income and self-employment income for Mother; and (b)
21 whether the Temporary Restraining Order filed 3/9/2026 should be modified to permit channels
22 of communication between the parties regarding legal issues (e.g., how the parties can
23 communicate to calculate support true-ups).

24 7) On 6/24/2026, Father filed an Income and Expense Declaration. Father states that he is 44 years
25 old and has a B.S. in Biochemistry and Molecular Biology and an M.S. in Financial Analysis.
26 Father also indicates that he has passed the SIE, Series 86, and Series 87 examinations. Father
27 states that he has worked as a retail sales associate for Beverages & More since 3/16/2026, where
28 he works 5 hours per week and is paid \$19.20 per hour. Father also states that he has worked as a
29 retail sales professional for Xfinity since 3/30/2026, where he works 40 hours per week and earns

1 \$19.20 per hour. Father further states that he has been self-employed for David Carlson
2 Consulting LLC (which is a biotech consulting business) since 4/27/2026, for which he works 13
3 hours per month in billable hours and is paid \$150 per hour. Father states that last month he
4 earned the following amounts: \$3,311 in salary and wages, \$214 in overtime, \$1,823 in
5 commissions or bonuses, and \$1,404 in net self-employment income. Father states that his
6 monthly expenses total \$7,185. Father states that he has \$6,047 in liquid savings and \$2,000 in
7 personal property. Father states that he owes \$21,329 in student loans, \$1,677 in credit card debt,
8 and \$113,000 for a personal loan which he states was incurred to pay attorney's fees.

- 9 8) On 6/24/2026, Father filed a Declaration Regarding New Jobs. Father states that his current
10 employment at Xfinity is full-time with benefits, and he foresees a potential path to success
11 within the company as a manager, business-sales representation, or a transfer within the company
12 to the finance department. Father states he expects to earn \$61,000 per year through his position
13 with Xfinity. Father states that he also began working at BevMo in March 2026 and works every
14 chance he can get, including closing every Monday, which means that he works 12+ hour days on
15 Monday working at Xfinity and then Bevmo. Father states that his work for Bevmo is a "nice
16 supplement to my income." Father also states that he has formed David Carlson Consulting LLC
17 and works as a biotech consultant with TheraVac Biologics. Father states that he his agreement is
18 limited to 20 hours per month (at a rate of \$150 per hour), but they are "discussing a permanent
19 position that could become available in the Fall." Father states that he estimates he is currently
20 able to earn \$102,000 per year, and agrees for that figure to be used in the support calculation
21 commencing 7/1/2026. Father asks that the Court keep the imputed \$100,000 salary through
22 3/31/2026 for purposes of the "future true-up." Father estimates that Mother is currently earning
23 \$550,000. Father states that after the last support hearing on March 17th during which Mother
24 claimed financial hardship, Mother provided Father with her proposed vacation schedule, which
25 included international travel with the kids for ~12 days over Father's day and a second week-long
26 domestic trip later this summer. Father notes that it is not clear how the parties are to perform the
27 yearly support true-up given that the temporary restraining order limits Father's communication
28 with Mother to just communications regarding exchanges. Father requests that the Court appoint
29 a third-party accountant to manage the yearly true-up. Father also states that Mother "provides

1 little or no information regarding add-on expenses” and wants the Court to provide explicit rules
2 for add-on expenses. Father further states that Mother sends support checks at various times each
3 month, backdates checks to the 1st of the month, but mails the check as much as 7 or more days
4 later; Father requests the Court “set a postmark date each month for payment consistency.” Father
5 also discusses several custody and visitation issues in his declaration, and requests that the Court
6 order the children to be removed from Lycee France De San Francisco and attend public school
7 through San Francisco Unified School District.

8 9) On 6/24/2026, Mother requested to continue the originally scheduled 6/30/2026 review hearing
9 because Mother needed additional time to prepare complete and accurate financial statements.

10 10) On 6/26/2026, the Court granted Mother’s request to continue the 6/30/2026 hearing to 9/1/2026.

11 11) On 8/13/2026, Mother filed an Update Declaration. Mother states that the current support
12 calculation was based on an estimate of projected monthly income which did not come to fruition.
13 Mother states that in 2025, rather than earning \$25,000 in monthly net self-employment income,
14 she actually earned average net monthly income of \$15,380, resulting her paying support based
15 on income substantially greater than she actually earned. For 2026, Mother estimates that her net
16 self-employment income will average in the rage of \$3,500 to \$8,000 per month. Mother requests
17 that the Court use \$3,500 per month for net self-employment income when calculating support
18 with any additional income to be accounted for in an annual true-up. Mother also asks the Court
19 to impute \$155,000 per year in annual salary to Father. Mother states, “Since forming my practice
20 in 2022, my business deductions have been limited to ordinary and necessary expenses required
21 to operate the medical practice, maintain legal and licensing compliance, and provide patient care.
22 Deducted expenses are as itemized in schedule C of my business tax returns and in professionally
23 prepared annual profit and loss statements with one exception: depreciation, amortization, 50% of
24 meal expenses, and California franchise taxes are added back to income and not deducted as
25 business expenses for purposes of calculating income available for support.” Mother states, “I am
26 not voluntarily unemployed, underemployed, or working below my professional qualifications. I
27 continue to work to increase the practice's patient volume, revenue, and profitability.” Mother
28 states that the decision to transition from her previous lucrative position as a full-time surgeon
29 was a joint decision made with Father which coincided with the decision to have a second child.

1 The goal was to transition to “a practice combining surgery with more flexible general
2 dermatology so that I could meet our children's daily needs while David pursued his demanding
3 finance career. We agreed that private practice would provide the flexibility and autonomy
4 necessary to accomplish this.” Mother also states, “My historical gross business profit over the
5 preceding three years is as follows: \$1,236,886 in 2023, \$1,405,392 in 2024, and \$1,116,442 in
6 2025. My historical wage income is as follows: \$177,504 in 2023, \$140,709 in 2024 and
7 \$151,950 in 2025. My historical self-employment income is: \$147,158 in 2023, \$145,449 in
8 2024, and \$15,267 in 2025. The sharp decline in self-employment income in 2025 is attributed to
9 a lower gross business profit for the year, and higher business overhead (for example markedly
10 increased costs of goods due to Trump tariffs, worsening inflation, direct purchase of capital
11 expenditure necessary to run the business, repayment of business loans etc).” Mother states
12 Father remains underemployed. Mother states, “From January 2021 and at the time of marital
13 separation in January 2024, David was an associate research equity analyst at Wedbush earning
14 between \$139,000- \$166,000 as an unlicensed broker. Because he completed his required
15 brokerage licensure requirements in December 2023 (see publicly available FINRA broker
16 license search) his bonus earnings would have been expected to increase in July 2024. Per
17 financial markets data on compensation in the US, fully licensed mid-level or associate equity
18 research analysts, which is David’s most recent role, earned between \$190,000 and \$400,000 in
19 San Francisco in 2023 and 2024 (Exhibit C). But David did not remain with Wedbush long
20 enough to see any such increases in bonus. He was let go from this position in May 2024.”
21 Mother states that Father’s work search efforts have been minimal. Mother states Mother has not
22 contacted Garth Timoll, who is a CEO of a top venture capital firm, who previously assisted
23 Father to find employment in 2021, nor has he contacted Matthew Barcus, Vice President of
24 Equity Research in Biotech at Jeffries, regarding open equity research positions. Mother states
25 Father continues to direct his work efforts towards speculative or unpaid ventures that he
26 eventually abandons. Mother states, “Our children should not have to lose their school,
27 established activities, childcare, friendships, family travel, or experience housing instability
28 because David remains underemployed despite his demonstrated ability and opportunity to earn
29 substantially more. It is in their best interests that both parents contribute according to their

1 earning capacities rather than require the children to bear the consequences of David's decision to
2 devote substantial working capacity to ventures producing little or no income instead of
3 compensated employment consistent with his qualifications and earning capacity."

4 12) On 8/13/2026, Mother filed an Income and Expense Declaration.

5 13) On 8/13/2026, Mother filed a Statement of Support Calculation. Mother's proposed support
6 calculation calls for Mother to pay Father \$1 in base child support and \$0 in base temporary
7 spousal support.

8 14) The Court notes the following future hearing dates:

9 a. 10/1/2026 – hearing on Mother's Request for Order filed 6/30/2026 seeking sole legal
10 and physical custody of the children, and reduced timeshare for Father. The Court notes
11 this would be a change to the current orders which provide for joint legal and joint
12 physical custody of the children and for a 2-2-5-5 parenting schedule.

13 b. 10/21/2026 – second long-cause hearing date on Mother's Order to Show Cause re:
14 Contempt filed 10/17/2025 wherein Mother alleges Father violated the First Amended
15 Temporary Restraining Order.

16 15) The Court also notes that on 2/19/2026, Judge Chan concluded a 5-day trial on Mother's Request
17 for Domestic Violence Restraining Order filed 6/4/2025. The parties agreed to continue the trial
18 for a period of one year, which included extending the Temporary Restraining Order for one year.
19 The parties also agreed that if there were no acts violating the Temporary Restraining Order for a
20 period of one year, Mother's Request for Domestic Violence Restraining Order would be
21 dismissed. The Temporary Restraining Order (filed 3/9/2026) is currently set to expire on
22 2/23/2027.

23 **B. Findings and Order**

24 1) There are two issues on for this review hearing: (a) whether to modify child and temporary
25 spousal support retroactive to the date Father began his new job to take into account (i) Father's
26 new employment earnings and (ii) possibly lowered base income and self-employment income
27 for Mother; and (b) whether the Temporary Restraining Order filed 3/9/2026 should be modified
28 to permit channels of communication between the parties regarding legal issues (e.g., how the
29 parties can communicate to calculate support true-ups).

2) Base Child and Temporary Spousal Support

- a. The Court finds good cause to modify child and temporary spousal support retroactive to 7/1/2026, which is when Father expects he will begin earning more income through David Carlson Consulting LLC. The Court finds that Father's new employment as well as Mother's decreased earnings warrant a modification of child and temporary spousal support.
- b. The Court does not find good cause to impute additional income to Father beyond the \$102,000 in annual income that Father anticipates he will be earning with his new positions of employment and self-employment. This finding is made without prejudice to the Court's ability to impute additional income to Father when the Court adjudicates long-term spousal support. If the Court finds good cause to impute additional income to Father when it adjudicates long-term spousal support, the Court may also modify child support to impute additional income to Father.
- c. The Court also does not find good cause to impute to Mother more income than what she currently reports earning. This finding is made without prejudice to the Court's ability to impute additional income to Mother when the Court adjudicates long-term spousal support. If the Court finds good cause to impute additional income to Mother when it adjudicates long-term spousal support, the Court may also modify child support to impute additional income to Mother.
- d. Effective 7/1/2026, in accordance with the XSpouse report attached hereto and incorporated by reference, Mother shall pay Father base child support of \$876 per month and base temporary spousal support of \$474 per month, for total base support of \$1,350 per month. This amount shall be paid to Father in full no later than the 5th of each month. Mother's support checks shall be mailed to Father and post-dated no later than the 2nd of each month.
- e. The Court will use the following inputs in the XSpouse calculation:
 - i. Father estimates that he will be earning \$102,000 annually going forward, which averages out to \$8,500 per month.

- 1 ii. The Court is using the income inputs for Mother provided by Mother in her
2 proposed XSpouse calculation, but is not including mandatory retirement, as the
3 Court does not see evidence that Mother is required to contribute to a retirement
4 plan.

5 3) Child Support Add-Ons

- 6 a. The XSpouse calculation shows that, after payment of base child support and temporary
7 spousal support, the parties' net spendable incomes are essentially equalized.
8 b. Effective July 1, 2026, the parties shall share equally all reasonable uninsured healthcare
9 costs of the children as well as the costs for the children to participate in any
10 extracurricular activity in which they are currently enrolled or in which the parties
11 mutually agree in writing the children can be enrolled.
12 c. The procedure for requesting and paying reimbursement claims for uninsured healthcare
13 costs shall be as set forth in Judicial Council Form FL-192.
14 d. The procedure for requesting and paying reimbursements for qualifying extracurricular
15 activity costs shall be as follows. When a party (e.g. Party A) pays for a qualifying
16 extracurricular activity cost, within 30 days of paying the expense, Party A shall present
17 to Party B: (a) an itemized statement of charges, (b) proof of payment, and (c) the amount
18 due and owing from Party B. Within 10 days of receiving this information, Party B shall
19 submit a payment to Party A for Party B's share of the expense.
20 e. At each annual true-up, the parties shall recalculate their respective net spendable
21 incomes after payment of base child support and temporary spousal support and shall
22 recalculate each party's share of reasonable uninsured healthcare costs for the children
23 based on the parties' respective net spendable incomes after payment of support. Any
24 resulting reimbursement or credit shall be included in the true-up.

25 4) Support Arrears or Credits Due for the Period 7/1/2026 – 8/31/2026

- 26 a. Any support arrears or credits due for the period 7/1/2026 – 8/31/2026 and any
27 reimbursements due for child support add-ons for that same period as a result of the
28 modification of child and temporary spousal support orders set forth above shall be
29 discussed and accounted for during the support true-up for 2026.

1 5) Annual True-Up of Support

- 2 a. The parties shall perform an annual true-up of support. During the true-ups, the parties
- 3 shall recalculate child and spousal support based on the parties' total income earned
- 4 during the previous year, calculate any support arrears or credits owed, and calculate any
- 5 additional child support add-on reimbursements owed for reasonable uninsured
- 6 healthcare expenses and extracurricular activity costs based on the parties' net spendable
- 7 incomes for support based on each party's annual income.
- 8 b. No later than February 28th of each year, both parties shall provide to the other party
- 9 documentation showing total W2 income earned during the immediately preceding year
- 10 as well as Profit and Loss Statements for the immediately preceding year showing net
- 11 self-employment income.
- 12 c. When calculating net self-employment income, the parties shall add back in depreciation,
- 13 amortization, 50% of meal expenses, and California franchise taxes.
- 14 d. When recalculating child and spousal support for the immediately preceding year, the
- 15 income inputs used in the XSpouse calculation attached hereto and incorporated herein
- 16 set a floor in terms of the parties' incomes. In other words, the true-up is only meant to
- 17 capture support owed for income earned in addition to the income figures used for each
- 18 party in the XSpouse calculation.
- 19 e. Any child support arrears or credits owed as a result of the true-up shall be paid no later
- 20 than March 31st.

21 6) Other Orders

- 22 a. The Work Search Order remains in full force and effect.
- 23 b. Regarding Father's request that the children attend public school this year, the Court
- 24 finds that issue is not currently before the Court. Either party may file a new Request for
- 25 Order to address this issue.

26 7) The Court will prepare the Findings and Order After Hearing.

27

28

29

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	2	0	2026			Guideline	Proposed
% time with NCP	0.00 %	49.99 %	GUIDELINE		Comb. net spendable	17237	17237
Filing status	HH/MLA	HH/MLA	Nets(adjusted)		Percent change	0%	0%
# exemptions	2	2	Support		Father		
Wages+salary	8500	11916	Father	6695	Payment cost/benefit	1350	1350
Self-employed income	0	3084	Mother	10542	Net spendable income	8045	8045
Other taxable income	0	1399	Total	17237	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	47%	47%
Other nontaxable income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	876	Total taxes	1805	1805
401(k) employee contrib	0	0	S.Clara SS	474	Dep. exemption value	0	0
Adjustments to income	0	0	Total	1350	# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	6476	6476
CS paid prev marriage	0	0			Mother		
Health insurance	0	1875			Payment cost/benefit	-1350	-1350
Other medical expense	0	0			Net spendable income	9192	9192
Property tax expense	0	0			Change from guideline	0	0
Ded interest expense	0	0	Proposed		% of combined spendable	53%	53%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	876	Total taxes	3982	3982
Qual bus income ded	0	0	SS	474	Dep. exemption value	0	0
Required union dues	0	0	Total	1350	# withholding allowances	0w	0w
Mandatory retirement	0	0			Net wage paycheck	8459	8459
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	0	0					

Mother pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information									
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	50 - 50	0	0	0	Father	876	Mother	876	Mother
	50 - 50	0	0	0	Father	329	Mother	329	Mother
	50 - 50	0	0	0	Father	548	Mother	548	Mother

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALLISON COBLEY,

Petitioner

VS.

OWEN FRANCIS FOLEY JENSEN,

Respondent

) Case Number: FDV-26-819162

) Hearing Date: September 1, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REVIEW HEARING FROM AGREEMENT REACHED 07/22/26

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Allison Cobley (Mother) and Respondent Owen Jensen (Father) have two minor children together, Apollo (DOB 4/15/2020, age 6) and Orion (DOB 3/4/2023, age 3). On 5/14/2026, Mother filed a request for a Domestic Violence Restraining Order (DVRO) against Father, and a Temporary Restraining Order (TRO) issued that same day protecting Mother and the children.
- 2) On 6/3/2026, the parties attended orientation and mediation, and the Court issued interim custody orders awarding Father daytime visits with the children including teaching time at Orion's co-op preschool on alternating weeks.
- 3) On 7/22/2026, the parties reached the following agreement: (1) Mother shall withdraw her DVRO request; (2) the parties share joint legal custody of the children; (3) Father shall enroll in an anger management course or therapy forthwith; (4) the parties enroll in coparenting counseling forthwith; (5) the parties shall continue to alternate preschool teaching time; (6) commencing 7/22/2026, Father shall have overnight visits from Friday at 3pm to Saturday at 7pm so long as he

1 is enrolled in anger management and coparenting counseling; (7) commencing 8/5/20226, Father
2 shall have Thursday after swimming to Sunday at 2pm provided he has participated in anger
3 management and is enrolled in coparenting counseling; (8) each party shall have one phone call
4 per day with the children when they are in the other party's care; and (9) Father may return the
5 children at 4pm on 8/16/2026, and both parties shall be permitted to attend the children's first day
6 of school. The Court ordered the parties to participate in Family Court Services orientation on any
7 Monday before 9/1/2026 and scheduled a review hearing for 9/1/2026.

8 4) Father has filed an update declaration in which he states that his parenting time has been going
9 well. He states he completed a 12-hour anger management course on 8/4/2026 and that the parties
10 agreed not to enroll in coparenting counseling at this time due to cost, but that there have been no
11 significant communication issues. He requests a 2-2-3 parenting time schedule beginning
12 10/5/2026, which he states constitutes a modest (8%) increase in parenting time compared to the
13 current schedule, and would give the children some time to adjust to the new school year before
14 another change in parenting time. He wishes to have alternating weekends so that he can establish
15 a school week routine with the children and because he has been "picking up shifts that include
16 weekends," which requires him to leave the children briefly in his mother's care. He also requests
17 a vacation/holiday schedule that would allow the parties to take the children on vacation for
18 longer than their custodial weekend. In addition, he asks that his Thursdays start after school, or
19 at noon when school is not in session.

20 5) Mother has filed an update declaration in which she states that another change in parenting time is
21 not in the children's best interests. She states that the children have had the current arrangement
22 for years, including before she moved out of the family home, and that it was originally put in
23 place to accommodate Father's work schedule. She states that a 2-2-3 schedule would also create
24 significant difficulties with her current employment; she points out that she does not have the
25 help Father has from his mother. Mother also states there have been some communication issues,
26 including not receiving responses when she has reached out to Father regarding important matters
27 such as the children's medical insurance. She states she is not opposed to Father having additional
28 time, and states for example, that he can pick up the children on Tuesdays, which will give him
29

1 an additional 3 or 4 hours of parenting time. She states she is also willing to work with a mediator
2 to discuss the holiday and vacation schedules.

3 **B. Findings and Orders**

- 4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 children is the United States.
- 8 2) The Court finds it is in the children's best interest to maintain the current parenting time schedule,
9 which was put into place only several weeks ago. The matter is set for a further review hearing on
10 11/3/2026 at 9am in Department 404, at which time the Court will reconsider Father's request for
11 a 2-2-3 schedule and address any other parenting time scheduling issues. In their update
12 declarations, the parties have made requests and proposals relating to minor parenting time
13 modifications such as Tuesday and Thursday pick up and holiday and vacation time. The Court
14 finds it would be beneficial for the parties to attend further mediation to discuss these matters.
15 The parties shall call Family Court Services at (415) 238-3623 forthwith to schedule further
16 mediation, to take place on or before 10/15/2026. The parties are also encouraged to meet and
17 confer regarding these issues before and after mediation. At least 10 days before the 11/3/2026
18 review hearing, the parties shall file and serve update declarations informing the Court how
19 things are going and what their custody and parenting time requests are going forward.
- 20 3) Father's attorney shall prepare the Findings and Order After Hearing.
- 21 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
22 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
23 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
24 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
25 proposed order after hearing directly to the court. Failure to submit the order after hearing within
26 10 days may allow the other party to prepare a proposed order and submit it to the court in
27 accordance with CA Rules of Court, Rule 5.125(d).
- 28
29